TEMPLATE P02 · CONTEXT AND CONSTRAINTS STATEMENT

Context and constraints statement

Records in writing, before investing, the strategic, regulatory, ethical, data, economic and organisational framework within which the initiative must be developed.

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01

Instructions for use

Aspect	Guidance
When it is used	In phase 0, together with the initiative charter (P01). It is reviewed at G3 and whenever a relevant constraint changes (regulation, budget, supplier, data).
Who completes it	The AI Product Owner. They consult the risk owner, data protection, information security and legal counsel.
Who verifies it	Lite: AI Office. Enterprise: AI Auditor.

Aspect	Guidance
Who decides	It is approved with G0: sponsor (Lite) · AI Committee (Enterprise).
Gate at which it is reviewed	Authorisation; checked again at G3 · Feasibility. `(G0)`
Tool	T01 · Initiative register (link as G0 evidence).
Lite versus Enterprise	Lite may omit the fields marked **(Enterprise)**. In Lite, constraints that do not apply are marked "Not applicable" with a one-line reason.

Completion rules:

- A constraint is something the initiative **cannot change**. If it can be negotiated, it is an assumption and goes in section 10.
- This statement does not replace the regulatory classification (P11) or the risk matrix (P12): it identifies what is known in phase 0 so that it is not discovered late.
- *This document does not constitute legal advice.* The applicability of each regulation must be confirmed by whoever has legal competence in the company. Regulatory references consulted in September 2026; their currency must be verified.

02

Identification

Field	Content	Guidance
Initiative code		IA-AAAA-NNN.
Initiative name		Same as in P01.
Document version		
Date		DD-MM-AAAA.
Author		Name and role.
People consulted		Second-line functions and legal counsel consulted, with date.
Applicable intensity		Lite · Enterprise (P04).

03

Strategic context

Field	Content	Guidance
Applicable AI thesis		Extract from or reference to the thesis approved in C2 that supports the initiative.
Ambition approved for the sphere		Ambition level set by the board in C2 for the primary sphere.
Applicable risk appetite		C2 limits affecting this initiative: acceptable residual risk level, maximum autonomy, customer exposure, economic thresholds.
Current state of the process		How it is done today, with what resources and with what known problems.
Existing initiatives or systems		Other AI systems in the inventory that already cover part of the process.
Return horizon set in C2 (Enterprise)		Period within which the expected net value must be positive for Optimise and Augment.

04

Regulatory constraints

State for each reference whether it applies. "To be determined" requires it to be resolved before G3.

Reference	Does it apply?	Reason	Implication for the initiative	Who confirms it
EU AI Act (Regulation (EU) 2024/1689)	Yes · No · To be determined		Classification and obligations according to the company's role (P11).	
GDPR (Regulation (EU) 2016/679) and national data protection legislation			Legal basis, minimisation, data protection impact assessment, automated decision-making.	
DORA (Regulation (EU) 2022/2554)		Only financial entities within its scope.	ICT third-party risk, incidents, critical or important functions.	

Reference	Does it apply?	Reason	Implication for the initiative	Who confirms it
NIS2 (Directive (EU) 2022/2555) and its national transposition		Essential or important entities.	Cybersecurity risk management and incident notification.	
Sector regulation		Supervisors and sector rules.		
Employment legislation		If the system affects working conditions, access to employment or the evaluation of workers.	Information to the workers' legal representatives (in Spain, Article 64.4.d of the Workers' Statute).	
Consumer protection, advertising and distance contracts		If there is interaction with customers.	Pre-contractual information, commercial practices, complaints.	
Intellectual property and trade secrets (Enterprise)		Use of third-party content or content generation.	Licences for data and outputs.	
Accessibility (Enterprise)		Products or services covered by Directive (EU) 2019/882 on accessibility requirements (in Spain, Law 11/2023).		
Internal rules		Corporate AI and acceptable use policy (document 31), security, data protection, procurement.		

05

Ethical and usage constraints

Field	Content	Guidance
Applicable corporate principles		Principles of the corporate AI policy that shape the design.
Non-permitted uses		Uses expressly prohibited by the company, in addition to the practices prohibited by regulation.
Vulnerable persons or groups		Minors, older people, persons with disabilities, situations of financial hardship.

Field	Content	Guidance
Minimum human oversight required		Which decisions must always remain in the hands of a person.
Maximum autonomy permitted		A0 Assistance · A1 Recommendation · A2 Supervised action · A3 Autonomous action (document 35).
Red lines		What the initiative will not do under any circumstances. *Illustrative example: the assistant will not modify orders or issue refunds.*

06

Data constraints

Field	Content	Guidance
Planned data sources		Systems, files or suppliers.
Personal data		Yes · No. If yes, categories of data subjects.
Special categories or specially protected data		Yes · No · To be determined. If yes, it triggers Enterprise criterion 5 in P04.
Critical confidential information		Trade secrets, inside information, customer data subject to secrecy.
Legal basis and purpose		Reference to the record of processing activities. Use compatible with the original purpose.
Location and international transfers		Where the data will be processed and whether it leaves the European Economic Area.
Use of data by suppliers		Whether the supplier may use data or prompts to train or improve its models. It must be prohibited or regulated by contract.
Known quality		Quality, completeness or bias problems already known.
Retention and deletion (Enterprise)		Retention periods for inputs, outputs and logs.

07

Budgetary and time constraints

Field	Content	Guidance
Maximum budget		Authorised cap and review point (consistent with P01).
Recurring cost constraints		Maximum acceptable annual cost in operation.
External deadlines		Regulatory, contractual or business dates that cannot be moved.
Change windows		Periods during which deployments cannot be made (closings, campaigns).

08

Technological and third-party constraints

Field	Content	Guidance
Corporate architecture and platforms		Mandatory or excluded platforms.
Approved suppliers		Whether the company requires already approved suppliers or a specific procurement process.
Security requirements		Information classification, identity and access requirements, permitted environments.
Dependency and substitutability (Enterprise)		Limits on concentration in one supplier; requirement for an exit plan.
Critical or important functions (Enterprise)		Whether the system will support a critical function, with the corresponding resilience requirements.

09

Organisational and people constraints

Field	Content	Guidance
Available capacity		People and time commitment the area can contribute.

Field	Content	Guidance
Expected effect on work		Tasks, roles or jobs that could change.
Training and AI literacy		Level of knowledge required for users and supervisors.
Labour relations		Obligations to inform or consult workers' representatives.
Languages, channels and accessibility		Usage requirements for internal or external users.

10

Assumptions and open questions

No.	Assumption or open question	Effect if it proves false	Owner	Deadline	Status
1					Open · Resolved
2					
(illustrative example)	The customer service platform supplier allows the use of conversations for training to be disabled.	The supplier would have to be changed or data anonymised before sending.	Technical owner	Before G3	Open

11

Quality criteria

The formal G0 and G3 criteria are in document 21 (see criteria G0.xx and G3.xx).

#	Check	Status
1	All regulatory references have an answer; those marked "To be determined" have an owner and a date before G3.	Met · Not met · Not applicable · Pending
2	The data constraints identify personal data, special categories and transfers.	
3	The maximum autonomy permitted and the decisions that are not delegated are declared.	
4	The red lines are specific and verifiable.	

#	Check	Status
5	The economic limits are consistent with P01.	
6	The second-line functions consulted and the date are recorded.	
7	Assumptions are kept separate from constraints.	
8	The document has an author, date and version, and existed before the *gate* was requested.	

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Approval and verification

Function	Role in SEVEN-G	Name and position	Date	Signature or reference
Prepares	AI Product Owner			
Consulted	AI Risk Owner · data protection · security · legal counsel			
Verifies	AI Office (Lite) · AI Auditor (Enterprise)			
Decides	AI Sponsor (Lite) · AI Committee (Enterprise), with GO			

Segregation of duties: consulting the second line is not equivalent to verification. The verifier has not prepared the document.

13

Version control

Completed document

Version	Date	Author	Changes

Template

Version	Date	Changes
0.1	16-09-2026	First version. Structure aligned with 01 §6.2 and §13.

External sources cited

Links to the official or primary source, checked before publication. Always verify the version in force on the date of use.

Directive (EU) 2022/2555 of the European Parliament and of the Council of 14 December 2022 on measures for a high common level of cybersecurity across the Union (NIS 2 Directive) · https://eur-lex.europa.eu/eli/dir/2022/2555/oj/eng · Parlamento Europeo y Consejo de la UE · 14-12-2022

Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) · https://eur-lex.europa.eu/eli/reg/2016/679/oj/eng · Parlamento Europeo y Consejo de la UE · 27-04-2016

Regulation (EU) 2022/2554 of the European Parliament and of the Council of 14 December 2022 on digital operational resilience for the financial sector (DORA) · https://eur-lex.europa.eu/eli/reg/2022/2554/oj/eng · Parlamento Europeo y Consejo de la UE · 14-12-2022

Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024 laying down harmonised rules on artificial intelligence (Artificial Intelligence Act) · https://eur-lex.europa.eu/eli/reg/2024/1689/oj/eng · Parlamento Europeo y Consejo de la UE · 13-06-2024

Royal Legislative Decree 2/2015 of 23 October approving the consolidated text of the Workers' Statute Act (unofficial translation) · https://www.boe.es/eli/es/rdlg/2015/10/23/2/con · Gobierno de España (Ministerio de Empleo y Seguridad Social) · 23-10-2015